Executive Order

PROVIDING FOR LICENSE TAXES AND FEES.

By virtue of the authority vested in me I hereby establish the following order for the Canal Zone:

SECTION I.

There shall be collected the following taxes for operating, in the streets and roads of the Canal Zone, public vehicles not drawn or propelled by steam, gasoline, electricity, or other motive power:

(a) For each coach, carriage, or other conveyance employed in the transportation of passengers for hire, $12.00 per annum.

(b) For each cart, dray, wagon, or other conveyance employed in the transportation of freight, merchandise, or other property, or employed by any merchant in the transportation of merchandise; $20.00 per annum for each two-wheel vehicle, and $30.00 per annum for each four-wheel vehicle.

The foregoing licenses shall be paid for the fiscal year, provided that the licensee may obtain a license for any period of the fiscal year not less than three months, upon payment of the proportionate tax due for the period for which the license is issued, and PROVIDED FURTHER, that if no license taxes are imposed in the Republic of Panama for operating therein the vehicles of the character in this section named, which are duly licensed in the Canal Zone to residents thereof, there shall not be imposed or collected in the Canal Zone any license taxes or charges for operating therein like vehicles when duly licensed in the Republic of Panama to residents thereof.

SECTION II.

The license tax on motor vehicles and motor cycles, required by the ordinance of the Isthmian Canal Commission, dater April 9, 1912, approved by the Secretary of War, May 1, 1912, amendatory of the ordinance of the Isthmian Canal Commission, enacted August 25, 1910, approved by the Secretary of War, October 31, 1910, shall be collected for the fiscal year, PROVIDED, HOWEVER, that the licensee may obtain a license for one or more quarters of a year, upon payment of the proportionate amount of the license tax to cover the period of the license to be issued to him.

The licenses heretofore issued under said ordinances for motor vehicles and motor cycles shall not be affected by this order, and shall continue to run until the end of the quarter following the expiration of such licenses, and thereafter the owners must obtain licenses for the fiscal year, or fraction thereof, in conformity with this section.

SECTION III.

The following special license taxes shall be collected in the Canal Zone:

(a) For each dance, for which admission is charged, there shall be col-

lected the sum of $5.00, PROVIDED, HOWEVER, that this tax shall not apply to any dance given for purposes of charity or benevolence, or the celebration of any public occasion authorized by the Governor.

(b) For operating a hurdy gurdy, street piano, or hand organ, striking machine, view machine, fortune telling device, cane rack, doll rack, or other similar device, of a non-gambling nature, maintained in the open or within an enclosure, where no admission is charged, $1.00 per month for each such device.

(c) For the retail sale of soda water, other aerated waters, or ice cream from any fountain or booth, or from any cart or vehicle, there shall be charged and collected a tax of $2.00 per month.

(d) For maintaining a merry-go-round for hire $10.00 per month.

(e) For musicians, jugglers, acrobats, trick riders, fortune tellers and persons engaged in similar businesses or professions, performing in the public highway, or from house to house, $1.00 per month for each person.

(f) For carrying on the business of a peddler $2.00 per month; PROVIDED THAT no license fee shall be required where only articles of food are sold, but the person selling such articles of food may obtain the license upon the condition that he will observe the sanitary regulations of the Canal Zone, and obey the orders of the sanitary officials in the conduct of such business, and a failure to do so shall authorize the Executive Secretary to cancel such license.

(g) For maintaining a shooting gallery, $5.00 per quarter of the year.

(h) For the retail sale of tobacco in any form there shall be charged and collected a tax of $2.00 per month.

SECTION IV.

Before any person engages in any business or calling, or operates any of the public vehicles mentioned in this order, he shall obtain a license to do so from the Executive Secretary, or the official acting under his authority, and such license shall not issue until the person applying for the same shall present a receipt from the Collector of the Panama Canal showing that the license tax herein provided for has been duly paid; provided that peddlers of articles of food shall pay no license fee. The license so issued shall authorize the person to conduct the business or calling, or operate the vehicle named therein in the Canal Zone for the period of time mentioned in such license.

The Executive Secretary may refuse to issue a license for any of the purposes hereinbefore mentioned, if the character of the applicant is such as to warrant the belief that the exercise of the privilege granted by the license will not be conducted in an orderly and lawful manner and, PROVIDED FURTHER, that any license granted pursuant to the foregoing provisions of this order shall at once become null and void upon conviction of the licensee, in any court of the Canal Zone, of a violation of the law in the exercise of the privilege granted by such license.

Any person who shall engage in any of the occupations above enumerated before obtaining the license provided for in this order shall be guilty of a misdemeanor, and shall be subject to a fine not exceeding $25.00 or

imprisonment not exceeding thirty days, or both such fine and imprisonment in the discretion of the court.

SECTION V.

That the ordinance enacted by the Isthmian Canal Commission on June 9, 1908, and approved by the Secretary of War, June 30, 1908, providing for certain taxes and licenses in the Canal Zone, other than for the sale of intoxicating liquors, and the ordinance of the Isthmian Canal Commission of August 5, 1911, approved by the Secretary of War, August 22, 1911, amending Section 7, of the above mentioned ordinance, as well as the ordinance of the Isthmian Canal Commission, of October 15, 1912, approved by the Secretary of War, October 26, 1912, further amending said Section 7 of said ordinance of June 9, 1908, are hereby repealed; but licenses heretofore issued under said ordinances shall be effective for the period of time specified in such licenses.

This order shall take effect from and after this date.

WOODROW WILSON

THE WHITE HOUSE,
13 October, 1914.

[No. 2062.]